

IN THE DISTRICT COURT OF NZEGA
AT NZEGA
CRIMINAL CASE NO. 42 OF 2003
INSPECTION NOTES

MUJULIZI, J.

Four members of the same family, SARA d/o NTUVILE aged 55 years, and his three Sons, ALFRED s/o MECHACK (32) YRS), ABEDNEGO s/o MESHACK (30 YRS) and TIMOTH s/o MESHACK (26 YRS), were arraigned before the District Court of Nzega, on 24/2/2003, on one count of burglary c/s 294 (1) of the Penal Code Cap 16 Vol.1 of the laws and one of stealing c/s of the same code.

It was alleged that the four had jointly and together on the 25th day of February, 1999 broken into the dwelling house of their husband/father respectively one MESHACK s/o NSUHUZWA and that after breaking into the house they had stolen there from assorted household utensils and other items valued at Tshs. 2, 040,000/= the property of the said Meshack s/o Nsuhuzwa.

It is instructive to note that;

- a) The alleged offences were committed on 25th February, 1999 but the charges were only formerly laid before the Court on 24th February, 2003, exactly four (4 years) after the alleged offence.
- b) Although the 1st count was framed as burglary, the time of the alleged break-in was not specified. Section 294(1) under which they were charged creates the offence of house breaking not burglary.
- c) The complainant was the former husband, and father the 3rd accused Sara d/o Ntuvile, and her three sons, respectively.

The trial was concluded, acquitting the accused persons on 24th march, 2004. The hearing having been concluded on 16/03/2004, the trial Magistrate delivered his judgment within a short period, by any standards.

But, it turned out that the complainant PW.1, Meshack s/o Nzuhuzwa, had sometime immediately after the hearing was concluded, and a date scheduled for delivery of Judgment; lodged a complaint with the Commission for Human Rights and Good governance which, without investigating the legality of its actions proceeded to write a letter to the District Magistrate In-charge of the Nzega District Court video its letter Ref. No.

UB/S/1623/2003/2004/MAH/TBR/6dated 16 April, 2004, stating as follows;

"KUCHELEWESHA KESI YA JINAI NA. 43/2003 KATIKA MAHAKAMA YA WILAYA NZEGA.

Tafadhali husika na kichea cha habari tajwa hapo juu. Tume imepokea malalamiko kutoka kwa Ndugu Meshack Nsuhuzwa kuwa, yeye ni mlalamikaji katika jinai tajwa hapo juu lakini kesi hiyo inasikilizwa kwa mizengwe kwani pamoja na kuwa ilishafika hatua ya hukumu, bado hukumu hiyo haijatolewa na kwamba walamikiwa sasa wanatishia kumuua.

Kwakuzingatia kifungu cha 26 (1) cha Sheria ya Tume Na. 7 ya mwaka 2001. Tunapenda utufahamishe kwa ufasaha unavyolifahamu suala hili, jinsi ulivyolishughulikia na hatua uliyofikia. Pia sababu zinazopelekea hukumu isitolewe na hali hesi ilishasikilizwa tayari.

Unaombwa kuonyesha ushirikiano wako juu ya suala hili.

OLE-SAIBULL; J.M.
Kny:d MWENYEKITI
TUME

From the facts on record, the above letter was received by the District Court on 05/05/2004, and without hesitation the District magistrate i/c, ordered the typist to prepare the judgment in the following words.

"Typist; chapa nakala ya hukumu haraka
signed:
5/5/2004

It is clear therefore that the complaint by Meshack Nsuhuzwa was a malicious pack of lies; and was an abuse of the good offices of the Commission for Human Rights and Good Governance, which, unfortunately, allowed itself, unwittingly, to be dragged into the affair.

Since the judgment of the Court acquitting the accused persons was handed out on the very date as scheduled upon conclusion of the trial, there was no factual or legal basis to justify the claim that between 15/03/2004 when the hearing ended and 24/03/2004 when judgment was delivered, there could have been any reason for any right minded person to entertain any claim of alleged delay at all, for a case which was first lodged in court on 24/02/2003.

In any event, the justice of the case would have been better served by an appeal against the acquittal on the part of the Director of Public Prosecutions if at all. For, the so called complainant, was merely a witness in the case, prosecution of which fell directly under the auspices of the Director of Public Prosecutions. Meshack Nsuhuzwa as the alleged victim of the alleged offences was merely the main witness in the case.

With respect to the Commission for Human Rights and Good Governance, and within the spirit of the independence of the Judiciary as enshrined in the constitution, their first point of call if at all they deemed it necessary to intervene at all, should have been the office of the Director of Public Prosecution to verify the allegations with the prosecutors who were conducting the case; first of all to establish the status of the case, and secondly out of courtesy to direct the complainant to refer his complaint to the DPP rather than calling upon the trial court to explain itself to the Commission; upon a complaint lodged by a witness in a Criminal Case conducted by public prosecutors, and still pending before a Court of competent jurisdiction.

I say so because, section 16(2)9a of the Commission for Human Rights and Good Governance Act, (Cap 391 R.E. 2002) expressly prohibits the Commission from investigating matters pending before a Court of Law in the following terms;

“16-(2) The Commission shall not investigate.

a) a matter which is pending before a Court or other judicial tribunal;”

In the circumstances quoting section 26 (1) of the said Act, under the letter quoted above, was misplaced: the Commission did not have; power to investigate the subject of the complaint. Section 26(1) merely prescribes the procedure in respect of an investigation, conduct of which, the Commission is empowered to undertake in the following terms;

“26-(1) where the Commission decides to conduct an investigation under this Act, it shall give the authority or person concerned and to any other person who is alleged in the complaint to have taken or authorized the act or omission complained of, an opportunity to comment on any allegations contained in the complaint and the representative of the authority or person concerned shall submit his comments within such time as the commission may specify”

There is nothing under that section as quoted in the Commission’s letter to the District Magistrate i/c of Nzega District Court, empowering it to require a magistrate or other judicial officer presiding over a Criminal or a Civil Case to explain to the Commission any alleged delay in the delivery of a judgment or other decision of the Court or other judicial tribunal pending before it. The above section must be read together with section 16 of the same Act, which is the jurisdiction provision.

Under Article 107B of the Constitution of the United Republic, 1977(CAP 2 R.E.2002) ‘Courts of law are not subject to any administrative directives in the

discharge of their judicial duties.

Article107/B provides:

“107B.Katika kutekeleza mamlaka ya utoaji haki, Mahakama zote zitakuwa huru na zitalazimika kuzingatia tu masharti ya katiba na yale ya Sheria za nchi.”

In the foregoing circumstances not only were the circumstances warranting any investigation by any authorized body non existent, but the Commission overstepped its powers, in contravention of clear provisions of the very law under which it is established, its action therefore amounted to a breach of the constitution of the United Republic.

In the premises, the District Registrar is hereby ordered to reply to the said letter, drawing the attention of the Commission to this unfortunate event, with a view to preventing further interference of the like nature.

Secondly these notes be circulated to all Registries of the Court with a view to alerting all magistrates, to keep guard against such unlawful interference and to accord such interference the clear and deserving answers, wherever and whenever such are received by the Courts.

It is so ordered.

A. K.MUJULIZI
JUDGE
27/2/2008